SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 7114 of 2021 (YEAR: 2010)

CORAM: DALVEER BHANDARI, H.S. BEDI

Kusum Sharma
... Appellant(s) / Petitioner(s)
Versus
Batra Hospital & Medical Research Centre
... Respondent(s)

Acts Referred:	Consumer Protection Act, 1986
Sections:	Section 14 Consumer Protection

JUDICIAL HEADNOTE & SUMMARY

Laid down comprehensive 11-point guidelines distinguishing between a bonafide clinical error of judgment and actionable medical negligence.

RATIO DECIDENDI

The Court held that: Laid down comprehensive 11-point guidelines distinguishing between a bonafide clinical error of judgment and actionable medical negligence. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Kusum Sharma v. Batra Hospital & Medical Research Centre (Civil Appeal No. 7114 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Consumer Protection Act, 1986, particularly Section 14 Consumer Protection. Laid down comprehensive 11-point guidelines distinguishing between a bonafide clinical error of judgment and actionable medical negligence.

OPERATIVE ORDER

ORDER: Decided